

Master Service Agreement

Agreement Number: MSA-2024-0156 | Effective Date: November 1, 2024

This Master Service Agreement ("Agreement") is entered into between:

Provider: CloudFirst Technologies Inc., a Delaware corporation with principal offices at 2000 Sierra Point Parkway, Brisbane, CA 94005 ("Provider")

Client: Horizon Retail Group LLC, a Nevada limited liability company with principal offices at 4400 Commerce Drive, Las Vegas, NV 89102 ("Client")

Article 1: Scope of Services

1.1 Provider agrees to furnish cloud computing services, including but not limited to: infrastructure as a service (IaaS), platform as a service (PaaS), data storage, backup services, and technical support as detailed in Exhibit A.

1.2 Services shall be performed in accordance with industry best practices and applicable service level agreements (SLAs) attached as Exhibit B.

Article 2: Term and Termination

2.1 Initial Term: This Agreement shall commence on the Effective Date and continue for a period of thirty-six (36) months ("Initial Term").

2.2 Renewal: This Agreement shall automatically renew for successive twelve (12) month periods unless either party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term.

2.3 Termination for Cause: Either party may terminate this Agreement for material breach if such breach remains uncured for thirty (30) days after written notice.

2.4 Termination for Convenience: Client may terminate this Agreement for convenience upon one hundred eighty (180) days written notice and payment of early termination fees as specified in Exhibit C.

Article 3: Fees and Payment

3.1 Monthly Service Fee: Client shall pay Provider \$47,500 per month for base services as outlined in Exhibit A.

3.2 Usage Fees: Additional usage beyond allocated resources shall be billed at rates specified in Exhibit C.

3.3 Payment Terms: All invoices are due within thirty (30) days of invoice date. Late payments shall accrue interest at 1.5% per month.

Article 4: Service Levels

4.1 Uptime Guarantee: Provider guarantees 99.95% monthly uptime for production environments. Scheduled maintenance windows are excluded from uptime calculations.

4.2 Support Response Times: Critical issues (P1): 15-minute response, 4-hour resolution target. High priority (P2): 1-hour response, 8-hour resolution target. Medium priority (P3): 4-hour response, 24-hour resolution target. Low priority (P4): 1 business day response.

4.3 Service Credits: If monthly uptime falls below 99.95%, Client shall receive service credits as follows: 99.0-99.95% = 10% credit, 98.0-99.0% = 25% credit, Below 98.0% = 50% credit.

Article 5: Data Security and Privacy

5.1 Provider shall implement and maintain security measures consistent with SOC 2 Type II and ISO 27001 standards.

5.2 All Client data shall be encrypted at rest (AES-256) and in transit (TLS 1.3).

5.3 Provider shall promptly notify Client of any security breach affecting Client data within twenty-four (24) hours of discovery.

Article 6: Limitation of Liability

6.1 EXCEPT FOR BREACHES OF CONFIDENTIALITY OR INDEMNIFICATION OBLIGATIONS, NEITHER PARTYS TOTAL LIABILITY SHALL EXCEED THE FEES PAID BY CLIENT IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

6.2 IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES.

Article 7: Confidentiality

7.1 Each party agrees to maintain the confidentiality of the other partys Confidential Information for a period of five (5) years following disclosure.

7.2 Confidential Information excludes information that: (a) is publicly available, (b) was known prior to disclosure, (c) is independently developed, or (d) is rightfully received from a third party.

Article 8: Governing Law

8.1 This Agreement shall be governed by the laws of the State of Delaware without regard to conflicts of law principles.

8.2 Any disputes shall be resolved through binding arbitration in San Francisco, California under AAA Commercial Arbitration Rules.

Signatures

CloudFirst Technologies Inc. By: _____ Name: Marcus Williams Title:
Chief Executive Officer Date: _____

Horizon Retail Group LLC By: _____ Name: Patricia Nguyen Title:
Chief Information Officer Date: _____